

HOUSE No. 4159

The Commonwealth of Massachusetts

PRESENTED BY:

Colleen M. Garry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to cardholder surcharges.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/12/2025</i>

HOUSE No. 4159

By Representative Garry of Dracut, a petition (subject to Joint Rule 12) of Colleen M. Garry relative to credit card surcharges. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 306 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to cardholder surcharges.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 28A of chapter 140D of the General Laws, is amended by striking out, in line 7-
2 9, the words “(2) No seller in any sales transaction may impose a surcharge on a cardholder who
3 elects to use a credit card in lieu of payment by cash, check or similar means.” and replace it with
4 the following words: “(2) A seller in any sales transaction may impose a surcharge of one half of
5 the processing fee on a cardholder who elects to use a credit card or debit card in lieu of payment
6 by cash, check or similar means. The charging of the surcharge fee shall be clearly stated on the
7 bill or invoice prior to payment.”